

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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SUMMONS

FELIPE VARGAS,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE MATHEW
REICH, Tax No. 933211, DETECTIVE MICHAEL
FORSTER, Tax No. 952742, DETECTIVE DOMINICK
LIBRETTI, Tax No. 951918, DETECTIVE CHRISTIAN
CATALDO, Tax No. 939985, DETECTIVE JAMES
MALPESO, Tax No. 932948, LIEUTENANT MICHAEL
DALBERO, Tax No. 948843, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Plaintiff designates Richmond
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 8, 2023

Yours, etc.

David M Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE MATHEW REICH, Tax No. 933211, Narcotics Borough Staten Island
DETECTIVE MICHAEL FORSTER, Tax No. 933211, Narcotics Borough Staten Island
DETECTIVE DOMINICK LIBRETTI, Tax No. 951918, Detective Borough Staten
Island
DETECTIVE CHRISTIAN CATALDO, Tax No. 939985, Narcotics Borough Staten
Island
DETECTIVE JAMES MALPESO, Tax No. 932948, Narcotics Borough Staten Island
LIEUTENANT MICHAEL DALBERO, Tax No. 948843, 120th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X

FELIPE VARGAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE MATHEW
REICH, Tax No. 933211, DETECTIVE MICHAEL
FORSTER, Tax No. 952742, DETECTIVE DOMINICK
LIBRETTI, Tax No. 951918, DETECTIVE CHRISTIAN
CATALDO, Tax No. 939985, DETECTIVE JAMES
MALPESO, Tax No. 932948, LIEUTENANT MICHAEL
DALBERO, Tax No. 948843, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff FELIPE VARGAS, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on December 8, 2020, at approximately 3:00 pm, plaintiff was a lawful passenger in a vehicle driven in the vicinity of 205 Mill Road, Staten Island, New York 10306 when the individually named police officer defendants, unlawfully stopped the vehicle, without reasonable suspicion, probable cause or any legal justification. The defendants falsely arrested plaintiff, unlawfully strip searched him, subjected him to an unlawful body cavity search and subjected him to the use of excessive force. Thereafter, plaintiff was maliciously prosecuted and denied his right to due process. The officers unlawfully searched, fingerprinted, photographed plaintiff, strip searched and subjected plaintiff to the use of excessive force at the 122nd Precinct. Plaintiff was unlawfully detained at the precinct for many hours and then he was transported to Richmond County Central Booking where he was detained until approximately December 9, 2020. Plaintiff was arraigned in Richmond County Criminal Court and charged with crimes he did not commit and that the

police officers lacked probable cause to accuse him of committing. Thereafter, plaintiff was maliciously prosecuted based upon false, misleading, and incomplete evidence and allegations provided by the defendant officers. Plaintiff was arraigned in Richmond County Criminal Court on December 9, 2020 and he was charged with committing several crimes he did not commit and that the police officers had no basis to accuse him of committing, including but not limited to Criminal Possession Controlled Substance in the 3rd Degree (PL 220.16), Criminal Possession Controlled Substance in the 5th Degree (PL 220.06), and Criminal Possession Controlled Substance in the 7th Degree (PL 220.03). Plaintiff was released from custody on his own recognizance at arraignment. Thereafter the prosecution was maliciously continued by defendants without probable cause for approximately four months and claimant made several Court appearances until the charges of Criminal Possession of a Controlled Substance in the Third and Fifth Degrees were terminated in his favor and were dismissed and sealed in their entirety on or about June 7, 2022. The remaining charges of Criminal Possession of a controlled Substance in the Seventh Degree were dismissed and sealed on December 6, 2022, in their entirety and terminated in plaintiff's favor. The officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes. The false allegations made by the officers formed the basis for the crimes he was charged with committing at arraignment, without probable cause or legal justification. At no time relevant herein did plaintiff commit a crime, nor did the police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law. The officers caused plaintiff to suffer severe bodily injuries from the excessive force and unlawful body cavity search they subjected him to. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, subjected plaintiff to the use of excessive force, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff ERIC VELAZQUEZ is a resident of the state of New York.
3. Defendant DETECTIVE MATHEW REICH, Tax No. 933211, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE MATHEW REICH, Tax No. 933211, was at all times relevant herein, assigned to the Narcotics Borough Staten Island command.
5. Defendant DETECTIVE MATHEW REICH, Tax No. 933211, is being sued in his individual and official capacity.

6. Defendant DETECTIVE MICHAEL FORSTER, Tax No. 952742, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant DETECTIVE MICHAEL FORSTER, Tax No. 952742, was at all times relevant herein, assigned to the assigned to the Narcotics Borough Staten Island command.

8. Defendant DETECTIVE MICHAEL FORSTER, Tax No. 952742, is being sued in his individual and official capacity.

9. Defendant DETECTIVE DOMINICK LIBRETTI, Tax No. 951918, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE DOMINICK LIBRETTI, Tax No. 951918, was at all times relevant herein, assigned to the assigned to the Narcotics Borough Staten Island command and is currently assigned to the Detective Borough Staten island command.

11. Defendant DETECTIVE DOMINICK LIBRETTI, Tax No. 951918, is being sued in his individual and official capacity.

12. Defendant DETECTIVE CHRISTIAN CATALDO, Tax No. 939985, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE CHRISTIAN CATALDO, Tax No. 939985, was at all times relevant herein, assigned to the Narcotics Borough Staten Island command.

14. Defendant DETECTIVE CHRISTIAN CATALDO, Tax No. 939985, is being sued in her individual and official capacity.

15. Defendant DETECTIVE JAMES MALPESO, Tax No. 932948, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE JAMES MALPESO, Tax No. 932948, was at all times relevant herein, assigned to the Narcotics Borough Staten Island command.

17. Defendant DETECTIVE JAMES MALPESO, Tax No. 932948, is being sued in her individual and official capacity.

18. Defendant LIEUTENANT MICHAEL DALBERO, Tax No. 948843, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant LIEUTENANT MICHAEL DALBERO, Tax No. 948843, was at all times relevant herein, assigned to the Narcotics Borough Staten Island command and is presently assigned to the 120th Precinct.

20. Defendant LIEUTENANT MICHAEL DALBERO, Tax No. 948843, is being sued in her individual and official capacity.

21. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On December 8, 2020, at approximately 3:00 pm, plaintiff was a lawful passenger in a vehicle driven by plaintiff's girlfriend's son, in the vicinity of 205 Mill Road, Staten Island, New York 10306 when the individually named defendants unlawfully stopped the vehicle, without reasonable suspicion, probable cause or legal justification.

28. At the time of the stop, plaintiff and his girlfriend's son were driving to plaintiff's girlfriend's home from the supermarket where they had just gone shopping for plaintiff's girlfriend.

29. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess an objective factual basis to establish reasonable suspicion or probable cause to believe plaintiff committed or was committing a crime or violating the law.

30. The officers immediately ordered plaintiff to exit the vehicle and plaintiff complied.

31. The officers proceeded to unlawfully pull-down plaintiff's pants and unlawfully strip search plaintiff on a public street.

32. At no time relevant herein did the officers possess objective facts that established probable cause to believe plaintiff secreted any illegal drugs weapons, or contraband underneath his clothing.

33. The officers did not recover any illegal drugs weapons or contraband from plaintiff pursuant to the strip search or at any other time.

34. Then an officer pulled the elastic of plaintiff's underwear and released it so that it slapped against plaintiff's skin in a painful manner.

35. None of the defendant officers were wearing masks to protect plaintiff from COVID and then without wearing gloves on his hand a defendant officer grabbed plaintiff's genitals and squeezed plaintiff's testicles causing plaintiff to suffer extreme pain and then ran his hand between plaintiff's buttocks.

36. Plaintiff asked to be taken to the hospital after the officers assaulted and battered him, but the officers refused to provide plaintiff with medical treatment.

37. The officers unlawfully handcuffed and falsely arrested plaintiff without probable cause and transported him against his will to the 122nd Precinct where plaintiff was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours.

38. The officers assaulted, battered and subjected plaintiff to excessive force at the 122nd Precinct by punching and kicking plaintiff throughout his body, causing him to suffer bruises and lacerations on his back, face, buttocks, and three cracked teeth.

39. The officers also conducted an unlawful body cavity search and used a hooked knife to rip off plaintiff's pants and then placed their hands inside of plaintiff's buttocks and anus causing extreme pain to plaintiff and causing scratches and bleeding from plaintiff's anus.

40. The defendant officers denied plaintiff the right to due process and maliciously prosecuted plaintiff when they provided the Richmond County District Attorney's Office with false, misleading and incomplete evidence/ information about the officers' basis for arresting plaintiff and charging him with crimes which caused the initiation of a criminal prosecution against plaintiff without probable cause.

41. Eventually plaintiff was transported to the 121st Precinct whereat the unlawful detention continued for many hours.

42. On December 9, 2020, at approximately 5 pm plaintiff was arraigned in Richmond County Criminal Court, charged with crimes he did not commit, including Criminal possession of a Controlled Substance in the Third, Fifth and Seventh Degrees.

43. Plaintiff was released from custody on his own recognizance at arraignment.

44. Plaintiff immediately went to the hospital to receive treatment for the physical injuries caused by the defendant offices, upon being released from custody.

45. Plaintiff obtained medical treatment for the physical injuries to his body that were caused by the excessive force and unlawful cavity search conducted by the officers.

46. Defendants signed and executed a criminal court complaint that contained false, misleading, and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

47. Plaintiff was arraigned in Richmond County Criminal Court on December 9, 2020 and he was charged with committing several crimes he did not commit and that the police officers had no basis to accuse him of committing, including but not limited to Criminal Possession Controlled Substance in the 3rd Degree (PL 220.16), Criminal Possession Controlled Substance in the 5th Degree (PL 220.06), and Criminal Possession Controlled Substance in the 7th Degree (PL 220.03).

48. Thereafter the prosecution was maliciously continued by defendants without probable cause for approximately four months and claimant made several Court appearances until the charges of Criminal Possession of a Controlled Substance in the Third and Fifth Degrees were terminated in his favor and were dismissed and sealed in their entirety on or about June 7, 2022.

49. The remaining charges of Criminal Possession of a controlled Substance in the Seventh Degree were dismissed and sealed on December 6, 2022, in their entirety and terminated in plaintiff's favor.

50. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

51. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess an objective factual basis to establish reasonable suspicion or probable cause to believe plaintiff committed or was committing a crime or violating the law.

52. The defendant officers did not recover any illegal weapons, drugs, or contraband pursuant to the unlawful strip search of plaintiff.

53. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess objective facts that established probable cause to believe plaintiff committed a crime or violated the law. .

54. The officers did not possess probable cause to believe plaintiff committed a crime when they arrested plaintiff.

55. The officers unlawfully searched, strip searched, fingerprinted, interrogated, and photographed plaintiff at the 122nd precinct.

56. Plaintiff was maliciously prosecuted based upon false, misleading, and incomplete evidence and allegations provided by the defendant officers.

57. The officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

58. The false allegations made by the officers formed the basis for the crimes he was charged with committing at arraignment, without probable cause or legal justification.

59. At no time relevant herein did plaintiff commit a crime, nor did the police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

60. At no time relevant herein were the officers justified using the level of force they did against plaintiff, causing him to suffer severe physical injuries to his body.

61. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

62. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

63. Although defendants failed to recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control, and lacked probable cause to believe plaintiff committed a crime or violated the law in any manner, the defendants unlawfully handcuffed and falsely arrested plaintiff.

64. The defendant officers unlawfully handcuffed and falsely arrested plaintiff without probable cause or legal justification.

65. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

66. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, strip searched, interrogated, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process/ right to a fair trial, and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

67. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, questioned, frisked, falsely arrested, and maliciously prosecuted plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

68. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

69. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

70. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

71. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since

the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

72. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

73. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

74. The unlawful search, false arrest, false imprisonment, malicious prosecution, excessive force, denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

75. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, strip searched, body cavity searched, searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

77. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

79. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

82. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, and inside of his anus and body cavities, employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

84. Defendants lacked probable cause to search plaintiff.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

88. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

90. Defendants commenced and continued criminal proceedings against plaintiff.

91. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

92. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

93. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights

Denial of Due Process/ Right to a Fair Trial

95. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 94 with the same force and effect as if fully set forth herein.

96. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Richmond County District Attorney's Office.

97. Defendants filled out false and misleading police reports and forwarded them to the Richmond County Criminal Court.

98. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

99. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

(Excessive Force)

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The use of excessive force by defendants by when they arrested and strip searched plaintiff in an extremely violent manner and conducted a strip search and body cavity search in an unreasonable manner that caused injuries to plaintiff's anus, repeatedly punching plaintiff throughout his body, applying the handcuffs in an unreasonably tight manner and twisting plaintiff's body in a manner that was intended to cause plaintiff to suffer pain was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

103. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

104. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

106. Defendants failed to intervene to prevent the unlawful conduct described herein.

107. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, subjected plaintiff to the use of excessive force, and denied plaintiff then right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

111. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, subjected plaintiff to the use of excessive force, and fabricate evidence, without a specific,

articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

112. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

113. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

114. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

115. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

116. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

117. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

118. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline

New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

119. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

120. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

121. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff FELIPE VARGAS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 8, 2023

By: David M Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
December 8, 2023

David M Hazan

DAVID M. HAZAN